

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #04	CCRB Case #: 201500573	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 01/25/2015 11:20 AM	Location of Incident: 3214 3rd Avenue	18 Mo. SOL 7/25/2016	Precinct: 42		
Date/Time CV Reported Sun, 01/25/2015 12:34 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 01/25/2015 12:35 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Enmanuel Rodriguezmarte	04091	952173	042 PCT
2. POM Scott Stava	17979	935785	042 PCT
3. An officer			042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b) and § 87(2)(b)	A . Officer(s) Unidentified
B . POM Enmanuel Rodriguezmarte	Discourtesy: PO Enmanuel Rodriguezmarte spoke rudely to § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . POM Scott Stava	Abuse: PO Scott Stava stopped § 87(2)(b)	C . Exonerated
D . POM Enmanuel Rodriguezmarte	Abuse: PO Enmanuel Rodriguezmarte questioned § 87(2)(b)	D . Exonerated

Case Summary

On January 25, 2015, § 87(2)(b) filed this complaint with the CCRB via the on-line website on behalf of herself and her boyfriend, § 87(2)(b). On February 10, 2015, § 87(2)(b) provided a verified statement. On February 24, 2015, § 87(2)(b) provided a phone statement. A verification form was mailed to him, but he has failed to return it to the CCRB.

On January 25, 2015, at approximately 11:20 a.m., § 87(2)(b) and her boyfriend, § 87(2)(b) started arguing in a deli, located on 3214 3rd Avenue in the Bronx. The owner of the store asked the two to step outside, which they did. They continued their argument on the sidewalk outside of the store, gesturing with their hands and speaking in an “elevated” voice, but not yelling.

Several minutes later, § 87(2)(b) and § 87(2)(b) were approached on foot by PO Enmanuel Rodriguezmarte and PO Scott Stava. Prior to entering the deli, § 87(2)(b) and § 87(2)(b) had seen the officers in their parked patrol car several storefronts away from the deli. One of the officers told § 87(2)(b) and § 87(2)(b) “You guys are making too much noise. I can hear you from two blocks away, and you’re giving me a fucking headache” (**Allegation A**). The officers told § 87(2)(b) and § 87(2)(b) to go back inside the deli multiple times, but they refused each time. PO Stava then asked § 87(2)(b) for his ID, which he provided. While PO Stava was reading § 87(2)(b)’s information into his radio, § 87(2)(b) called his father, who is a police officer. § 87(2)(b) told the officers that his father wanted to speak to them, and PO Rodriguezmarte replied, “I don’t want to fucking talk to him” (**Allegation B**).

PO Stava was informed that there was an active warrant for § 87(2)(b)’s arrest in Queens, so he placed § 87(2)(b) under arrest (**Allegation C**). While § 87(2)(b) was being placed in handcuffs, § 87(2)(b) asked the officers several times where they were taking § 87(2)(b). PO Rodriguezmarte told § 87(2)(b) “Mind your fucking business,” and to “Go the fuck home,” (**subsumed within Allegation B**). When § 87(2)(b) refused to leave, PO Rodriguezmarte asked for her ID (**Allegation D**). § 87(2)(b) did not provide it, and instead walked away. She had no further interaction with the officers. § 87(2)(b) was brought to the 42nd Precinct stationhouse for arrest processing.

§ 87(2)(b) was eventually released with a Desk Appearance Ticket for § 87(2)(b).

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation because sworn statements had been obtained by the time it was discovered that § 87(2)(b) had only been released with a DAT.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
- On March 17, 2015, a notice of claim was sent to the City Comptroller. It will be added to the case file upon receipt.

Civilian and Officer CCRB Histories

- This is the first complaint filed with the CCRB by § 87(2)(b) and the first CCRB complaint in which § 87(2)(b) is involved (Encl. 3A-B).
- PO Rodriguezmarte has been a member of the service for three years. These are the first allegations made against him (Encl. 2B).
- PO Stava has been a member of the service for ten years. There are no substantiated CCRB allegations against him § 87(2)(g)

Results of Investigation

Explanation of Subject Officer Identification

In § 87(2)(b)'s statement (Encl. 6B-C), she alleged that PO Rodriguezmarte said, "You guys are making too much noise. I can hear you from two blocks away, and you're giving me a fucking headache," upon first approaching § 87(2)(b) and § 87(2)(b). In § 87(2)(b)'s statement (Encl. 6F-H), he said that it was PO Stava, not PO Rodriguezmarte, who first spoke to him and § 87(2)(b). He alleged that PO Stava said, "Take it inside; you're giving me a fucking headache. I can hear you from two blocks away."

PO Rodriguezmarte was interviewed at the CCRB on March 9, 2015 (Encl. 7G-H). He denied saying, "I can hear you from two blocks away, and you're giving me a fucking headache." He did not recall hearing PO Stava make that statement, or any similar to it. PO Stava was interviewed at the CCRB on March 9, 2015 (Encl. 7J-K). He also denied making this statement or any similar to it, and he did not hear PO Rodriguezmarte make this statement either.

§ 87(2)(g)

Allegation A – Discourtesy: An officer spoke rudely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **officer unidentified**.

Allegation B – Discourtesy: PO Enmanuel Rodriguezmarte spoke rudely to § 87(2)(b) and § 87(2)(b)

In § 87(2)(b)'s statement, he alleged that when he told the officers that his father wanted to speak to them, PO Rodriguezmarte said, "I don't want to fucking speak to him." § 87(2)(b)'s statement corroborates that § 87(2)(b) asked the officers to speak to his father, and that the officers declined to do so. She did not allege, however, that PO Rodriguezmarte made the above discourteous remark when declining to speak to § 87(2)(b)'s father.

Towards the end of the incident, when § 87(2)(b) was being placed under arrest and the officers told § 87(2)(b) to leave the scene, § 87(2)(b) alleged that PO Rodriguezmarte told § 87(2)(b) "Mind your fucking business." § 87(2)(b) did not corroborate this

statement. Instead, she alleged that PO Rodriguezmarte told her to “Go the fuck home,” at this part of the incident.

Because § 87(2)(b) s father was on the phone during some of the alleged discourteous remarks, the investigation attempted to collect witness testimony from him. However, § 87(2)(b) refused to provide his father’s name or contact information, despite multiple calls and correspondence that were made and sent to him, but not returned. Consequently, the investigation could not obtain a statement from § 87(2)(b) s father (Encl. 9A-F).

In an attempt to identify witnesses, multiple letters and calls were mailed and placed to the deli near where the incident took place. Finally on February 25, 2015, the owner of the deli called the CCRB, but he did not recall the incident.

In PO Rodriguezmarte’s statement, he denied making the alleged discourteous remarks to § 87(2)(b) or § 87(2)(b) PO Stava denied hearing PO Rodriguezmarte make any of the statements alleged by § 87(2)(b) and § 87(2)(b) during the incident.

§ 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g). It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: PO Scott Stava stopped § 87(2)(b)
Allegation D – Abuse of Authority: PO Enmanuel Rodriguezmarte questioned § 87(2)(b)
§ 87(2)(b)

The following statements are undisputed: § 87(2)(b) and § 87(2)(b) were arguing inside of a crowded store, located on 3214 3rd Avenue in the Bronx, where the owner asked them to step outside. The two continued their argument on the sidewalk outside the store. PO Stava and PO Rodriguezmarte were seated in their parked patrol car multiple storefronts away from § 87(2)(b) and § 87(2)(b) PO Rodriguezmarte and PO Stava subsequently approached, and told § 87(2)(b) and § 87(2)(b) to leave the area or go back inside the store approximately three times. In each instance, § 87(2)(b) and § 87(2)(b) refused to follow the officers’ orders. § 87(2)(b) was aggressive and confrontational when speaking to the officers. PO Stava asked for § 87(2)(b) s ID after he had been asked to leave approximately three times, and then placed § 87(2)(b) under arrest. PO Rodriguezmarte asked for § 87(2)(b) s ID when she refused to follow an additional order to leave the scene. § 87(2)(b) did not provide her ID, however, and subsequently left the scene.

§ 87(2)(g)
§ 87(2)(g)
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§ 87(2)(g)

§ 87(2)(g)



According to both civilians, there were no other pedestrians nearby while the argument was taking place. However, both corroborated that the inside of the deli they were arguing in front of was crowded. Both officers stated that they were alerted to the argument by two separate civilians. They also both stated that the sidewalk was busy with pedestrian traffic, and that people were walking out of their way to go around § 87(2)(b) and § 87(2)(b) while the two argued. § 87(2)(g)

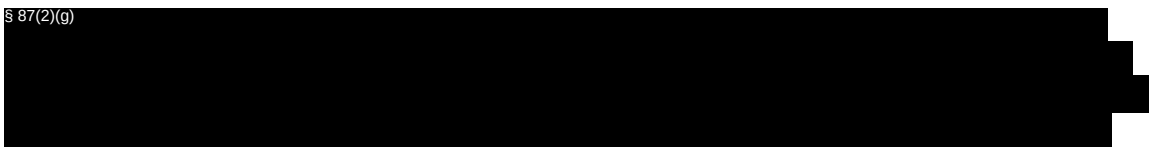


According to section 240.20 of the New York State Penal Code, a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof, he or she makes unreasonable noise, or uses abusive or obscene language in a public place, or obstructs pedestrian traffic, or congregates in a public space and refuses to comply with a lawful order of the police to disperse (Encl. 1A).

§ 87(2)(g)



§ 87(2)(g)



it is recommended that **Allegation C** and **Allegation D** be closed as **exonerated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date